

"The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right ... to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) Code Civ. Proc. § 377.32, subds. (a)(1) through (7), sets forth the requirements for the affidavit.

Ms. Garcia provided a declaration in compliance with Code Civ. Proc. § 377.32, which provides as follows:

She is the surviving daughter of Plaintiff, who died intestate on October 28, 2024 in the City of Huntington Beach. (Decl. of Garcia, ¶¶ 2, 4). She attached a copy of the death certificate as Exhibit A. (Decl. of Garcia, ¶ 2, Ex. A). Decedent was not married at the time of her death. (Decl. of Garcia, ¶ 3). She is the decedent's sole surviving daughter. (Decl. of Garcia, ¶ 4). Decedent was also survived by one son, Hodari Garcia. (Decl. of Garcia, ¶ 5).

No proceeding is now pending in California for administration of the decedent's estate. The decedent's estate has not been administered in California. (Decl. of Garcia, ¶ 6). She is the decedent's successor in interest as defined in California Code of Civil Procedure § 377.11 and succeed to the decedent's interest in this action. (Decl. of Garcia, ¶ 7). She declares that no other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding. (Decl. of Garcia, ¶ 8). Finally, she declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

However, the court notes paragraph 8 of Ms. Garcia's declaration regarding Hodari Garcia, and the lack of any further explanation. The court **ORDERS** Ms. Garcia to provide additional information regarding the status of Mr. Garcia and his interest in this litigation. Ms. Garcia shall provide supplemental briefing and/or declarations no later than 7 days prior to the continued hearing date.

Finally, Defendant Earl Wallace submitted an Opposition to the substitution on the basis that Plaintiff's claims against Wallace have already been dismissed, and substitution cannot revive dismissed claims. (See 4/10/25 Order sustaining demurrer [ROA 331]). The Court agrees that substitution does not revive dismissed claims. (See *Exarhos v. Exarhos* (2008) 159 Cal.App.4th 898, 905 ["[A] successor in interest under section 377.11 'steps into [the decedent's] position,' as to a particular action."]).

Ms. Garcia shall give notice.

Case Management Conference

		The Case Management Conference is continued to January 21, 2027, at 1:30 p.m. in this department. Plaintiff to give notice.
7	Davis-Bialuski v. Target Corporation	Off calendar.